HALCYON AUTOMATION PARTNERS

workflow automation | AI agents | knowledge systems

Consulting Services Agreement

This Consulting Services Agreement (the "Agreement") is between Halcyon Automation Partners LLC ("Halcyon", "we" or "us") and you, the client named in the signature section below ("Client" or "you"). It takes effect on the date Client signs it (the "Effective Date").

1. What we will do

1.1 Halcyon will review Client's current operating processes, identify tasks suitable for automation, and design, build and deploy AI agents and automated workflows that connect Client's existing business systems (the "Automations").

1.2 Halcyon may engage subcontractors to perform parts of the Services, provided that Halcyon remains responsible for their performance and for their compliance with this Agreement.

1.3 Each phase of work will be described in a short written project plan that both parties approve by email before work on that phase begins.

2. Fees

2.1 Client will pay the following fees:

- Discovery and process-mapping workshop: $_____ (fixed fee)
- Build and deployment of the Automations: $_____ per phase
- Ongoing support and monitoring: included for the first ninety (90) days after go-live

2.2 Invoices are due within thirty (30) days after the invoice date. Late payments bear interest at one percent (1%) per month or the maximum rate permitted by law, whichever is less. Fees exclude taxes, which Client will pay, other than taxes on Halcyon's net income.

2.3 Third-party model usage, hosting and API costs that exceed the usage allowance in the applicable SOW will be passed through at cost, as shown in the monthly usage report.

3. Your data

3.1 Client retains all right, title and interest in the documents, records and other materials that Client or its users submit to the Platform ("Client Data"). Client grants Halcyon a limited license to host, copy, process, transform and display Client Data solely as needed to provide the Services.

3.2 Halcyon will not use Client Data to train or fine-tune any general-purpose machine learning model made available to other customers. Halcyon may use aggregated, de-identified usage statistics to operate and improve the Platform.

3.3 Client is responsible for obtaining all consents and giving all notices required for Halcyon to process Client Data, and for the accuracy, quality and legality of Client Data.

4. AI-generated output

4.1 The Solution uses machine learning models, including large language models provided by third parties, that generate outputs probabilistically. Outputs may be inaccurate, incomplete or inconsistent, and Client is responsible for reviewing outputs before relying on them for any decision with legal, financial, medical or similar significance.

4.2 As between the Parties, Client owns the outputs generated from Client Data, subject to Halcyon's rights in the Platform and in its pre-existing materials.

5. Confidentiality and security

5.1 Each Party will protect the other Party's non-public business, technical and financial information that is marked or reasonably understood to be confidential ("Confidential Information") with at least reasonable care, will use it only to perform under this Agreement, and will disclose it only to personnel and advisors who need to know it and are bound by obligations no less protective than these.

5.2 Halcyon will maintain administrative, physical and technical safeguards designed to protect Client Data against unauthorized access, use or disclosure, including encryption in transit and at rest, role-based access controls and logging of administrative access.

6. Ownership

6.1 Halcyon retains all rights in the Platform, its software, prompts, workflow templates, ontologies, connectors, documentation and know-how, including improvements made while providing the Services ("Halcyon Materials"). Upon payment in full, Client owns the custom deliverables identified in an SOW as belonging to Client, excluding Halcyon Materials.

7. Ending this Agreement

7.1 Either party may end this Agreement for any reason on thirty (30) days' written notice, including by email.

7.2 Either Party may terminate this Agreement on written notice if the other Party materially breaches it and fails to cure the breach within thirty (30) days after receiving written notice. On termination, Client will pay all fees accrued through the termination date, and Halcyon will make Client Data available for export for thirty (30) days, after which Halcyon will delete it.

8. Warranty and liability

8.1 Halcyon warrants that it will perform the Services in a professional manner consistent with industry standards. EXCEPT AS EXPRESSLY SET OUT IN THIS AGREEMENT, THE SERVICES, THE PLATFORM AND ALL OUTPUTS ARE PROVIDED "AS IS", AND HALCYON DISCLAIMS ALL IMPLIED WARRANTIES, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE AND NON-INFRINGEMENT.

8.2 NEITHER PARTY WILL BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, REVENUE OR DATA, EVEN IF ADVISED OF THEIR POSSIBILITY. EACH PARTY'S TOTAL LIABILITY UNDER THIS AGREEMENT WILL NOT EXCEED THE FEES PAID OR PAYABLE BY CLIENT IN THE TWELVE (12) MONTHS BEFORE THE CLAIM AROSE.

9. General

9.1 This Agreement is governed by the laws of the Commonwealth of Massachusetts, excluding its conflict of laws rules, and the Parties submit to the courts located in Suffolk County, Massachusetts.

9.2 This Agreement, together with each SOW, is the entire agreement of the Parties on its subject matter. Amendments must be in writing and signed by both Parties. Neither Party may assign this Agreement without the other's consent, except in connection with a merger or sale of substantially all of its assets.

9.3 This Agreement may be signed electronically and in counterparts, each of which is an original and all of which together are one instrument.

Signatures

By signing below, Client confirms that it has read and agrees to this Agreement.

Client Signature _____ Date _____

Client Name (print) _____

Client Company _____

For and on behalf of Halcyon Automation Partners LLC:

_____

Authorized Signatory

Name: Rowan Fakerly, Managing Partner

Date: _____